

PETITION - DELAWARE JUVENILE EXPUNGEMENT PETITION UNDER 10 DEL. C. Secs. 1017 / 1018

IN THE COURT

(the Delaware Family Court for the county in which the adjudication was entered)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

DELAWARE JUVENILE EXPUNGEMENT PETITION UNDER 10 DEL. C. Secs. 1017 / 1018

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "Juvenile expungement - discretionary adjudication branch", under 10 Del. C. Sec. 1018.

The compiled Delaware profile records the substance of this route as follows. Mandatory/automatic expungement needs no court form; discretionary expungement uses the court's expungement petition packet.

The committed contract records the timing of this route as: three, five, or seven years from the statutory completion or discharge anchor, according to the discretionary category; favorable-termination and automatic branches carry no elapsed filing wait.

The committed contract records these conditions on the route: Juvenile record classified under Secs. 1017, 1017A, or 1018; Category-specific offense and adjudication limits satisfied.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - disposition] Disposition?

.....

.....

[C2 - offense category] Offense category?

.....
.....

[C3 - number of adjudications] Number of adjudications?

.....
.....

[C4 - completion/discharge date] Completion/discharge date?

.....
.....

[C5 - age] Age?

.....
.....

[C6 - automatic-expungement status] Automatic-expungement status?

.....
.....

[C7 - excluded offense facts] Excluded offense facts?

.....
.....

D. THE REQUEST

The petitioner asks the Court to expunge the juvenile record described above under 10 Del. C. Sec. 1018.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route:

obligation:runtime-contract-cohort:DE:juvenile-expungement-under-10-del-c-1017-1019-1017a:section_
1018_discretionary_petition

FILING INSTRUCTIONS - DELAWARE JUVENILE EXPUNGEMENT PETITION UNDER 10 DEL. C. Secs. 1017 / 1018

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - DELAWARE JUVENILE EXPUNGEMENT PETITION UNDER 10 DEL. C. Secs. 1017 / 1018

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "Juvenile expungement - discretionary adjudication branch", under 10 Del. C. Sec. 1018, with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition under the applicable section; Adjudication record; Completion or discharge proof. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions, and the Family Court decides. This is the DISCRETIONARY branch: the committed contract records the Sec. 1017 favorable-termination branch as mandatory with no elapsed wait, and the Sec. 1017A branch as running through the AUTOMATIC programme. Those are different routes with their own families.

WHAT YOU DO

- Work out which of the three discretionary categories your record falls in. The committed contract records three, five and seven years from the statutory completion or discharge anchor, according to the discretionary category, and records that the three-year value is the LOWEST branch - the five- and seven-year branches turn on the offence category.
- Fill every labelled item on the petition from the adjudication record itself.
- Obtain the adjudication record and the completion or discharge proof; the committed contract names both as components of this packet.
- Sign and date the petition personally, then file it with the Family Court.

WHAT YOU DO NOT DO

- Do not use this petition for a Sec. 1017 favorable-termination matter. The committed contract records that branch as mandatory with no elapsed wait; asking a court to exercise discretion it does not need to exercise is the wrong instrument.
- Do not use this petition where the record is a Sec. 1017A record that the automatic programme should already have reached. That is a separate route with its own family, and its first step is not a court filing.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that

answers both is the office of the Clerk of the Delaware Family Court for the county in which the adjudication was entered. Ask before you go, because a filing you cannot pay for is a filing you cannot make.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

The committed contract records an ATTORNEY GENERAL 120-DAY RESPONSE WINDOW for this cohort, and records it precisely: it is a post-filing procedure under Sec. 1017 and is NEVER a participant waiting period. What the contract does not establish is who the petitioner must serve, or how. The office that answers that is the office of the Clerk of the Delaware Family Court for the county in which the adjudication was entered.

WHEN TO STOP AND GET HELP INSTEAD

- you are not sure which of the three, five or seven-year discretionary categories your record falls in - the committed contract records that the category turns on the offence, and getting it wrong means filing too early;
- the record may be a Sec. 1017 favorable-termination matter, which the committed contract records as mandatory rather than discretionary;
- the record may be a Sec. 1017A record the automatic programme should already have reached, which is a different route with a different first step;
- the committed contract's category-specific offence and adjudication limits may not be satisfied;
- any immigration question is involved.

Route:

obligation:runtime-contract-cohort:DE:juvenile-expungement-under-10-del-c-1017-1019-1017a:section_1018_discretionary_petition